

TENTATIVE RULING

Case: **Malik v. Flagstar Bank, N.A.**
 Case No. CV2025-0929

Hearing Date: **June 23, 2026** **Department Thirteen** **9:00 a.m.**

Plaintiff's motion to file second amended complaint

Plaintiff Nadir Malik's motion to file second amended complaint is **GRANTED**. (Code Civ. Proc., § 473, subd. (a)(1); Cal. Rules of Court, rule 3.1324.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Defendant's motion for judgment on the pleadings

Defendant Flagstar Bank, N.A.'s motion for judgment on the pleadings is **DROPPED FROM CALENDAR AS MOOT**. (Code Civ. Proc., § 438; *State Compensation Ins. Fund v. Superior Court* (2010) 184 Cal.App.4th 1124, 1131, [the filing of an amended complaint moots a motion directed to a prior complaint because there is but one complaint in a civil action].)